

HOUSE No. 1893

The Commonwealth of Massachusetts

PRESENTED BY:

Samantha Montañó

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to stop profiling transgender people and low-income women.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Samantha Montañó</i>	<i>15th Suffolk</i>	<i>1/13/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>7/28/2025</i>

HOUSE No. 1893

By Representative Montañó of Boston, a petition (accompanied by bill, House, No. 1893) of Samantha Montañó relative to transgender people and low-income women and the penalties for certain offenses. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to stop profiling transgender people and low-income women.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 53 of Chapter 272 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by striking out, in lines 1-2, the words “Common night
3 walkers, common street walkers, both male and female,”.

4 SECTION 2. Section 62 of Chapter 272 of the General Laws is hereby repealed.

5 SECTION 3. Chapter 94C is hereby amended by inserting after section 34A the
6 following section:-

7 Section 34B: Any person who, in good faith, reports a crime shall not be charged or
8 prosecuted for (i) possession of a controlled substance under section 34, (ii) sex for fee under
9 chapter 272 section 53A subsections (a) or (b), or found in violation of a condition of probation
10 or pretrial release as determined by a court or a condition of parole, as determined by the parole
11 board if the evidence for the above enumerated offenses was gained as a result of reporting a
12 crime.